

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2026

BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SRCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE..... ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA..... ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: BOAKAI N. KANNEH.....ASSOCIATE JUSTICE

The Testate Estate of Martha B. Wright Tole George, represented by)
its Administrators Cum Testamento Annexo, Julius T. Parsons and)
Deontee M.B. Parsons, of the City of Monrovia, Montserrado County,)
Liberia.....Movant)
Versus) MOTION TO
DISMISS APPEAL

The Executors of Martha B. Wright Tole George, represented by)
and thru Ms. Jackie Parsons, of the City of Monrovia, Mrs. Tina)
Parsons Faissal, Mr. Ibimus Parsons, their Attorneys-In-Fact, Nicole)
R. Brown and Garry S. Perry, Jr.....Respondents)
GROWING OUT OF THE CASE:

The Executors of the Martha B. Wright Tole George, represented by)
and thru Ms. Jackie Parsons, of the City of Monrovia, Mrs. Tina)
Parsons Faissal, Mr. Ibimus Parsons, their Attorneys-In-Fact, Nicole)
R. Brown and Garry S. Perry, Jr.....Movants)
Versus) RELIEF FROM
JUDGMENT

The Testate Estate of Martha B. Wright Tole George, represented by)
its Administrators Cum Testamento Annexo, Julius T. Parsons and)
Deontee M.B. Parsons, of the City of Monrovia, Montserrado County,)
Liberia.....Respondents)

Heard: March 19, 2026 Decided: May 21, 2026

MR. CHIEF JUSTICE GBEISAY DELIVERED THE OPINION OF THE COURT

This motion to dismiss appeal emanates from a ruling made by the Monthly and Probate Court of Montserrado County in a petition for accounting rendered against the respondent to which ruling the respondent filed a motion for relief from judgment on March 31, 2021, which was heard and denied on March 31, 2021.

The Executors of the Martha B. Wright Tole George, represented by and thru Ms. Jackie Parsons, Mrs. Tina Parsons Faissal, Mr. Ibimus Parsons, their Attorneys-In-Fact, Nicole R. Brown and Garry S. Perry, Jr, movants herein, have requested this Court to dismiss the appeal filed by The Testate Estate of Martha B. Wright Tole George, represented by its Administrators Cum Testamento Annexo, Julius T. Parsons and Deontee M.B. Parsons, respondents herein on the ground that it has failed to transcribe the records to this Court for

a protracted period which amounts to abandonment of its cause and therefore, the said motion should be dismissed.

The respondent have argued that the said motion is filed in bad faith and is moot and of no legal effect as the records have already been transcribed and are currently before this Court; that it superintended the transcription of the records as far back as 2023; therefore, it (respondent) was not negligent in facilitating the transcription of the records as the movant would have it seem. The respondent then asked this Court to deny the said motion and proceed to hear the matter on its merits.

We move straight to the records to make a determination. The records show that the respondent filed its appeal bond on June 30, 2022, and served its notice of completion of appeal on the movant on July 12, 2022. We also see from the records that there is a clerk's certificate issued under the signature of the Clerk of the Monthly and Probate Court for Montserrado County on February 19, 2026, confirming that the records have not been transcribed to this Court as of that date.

This Court has set the standard that even though transcription of records before this Court is not a statutory ground for the dismissal of appeal; this Court will however consider an appealing party's failure to superintend the transcription of the records of its appeal for protracted period as an abandonment of the said appeal by the appealing party. *Nat'l Housing & Savings Bank v. Gordon*, 35 LLR 323 (1998). *The Intestate Estate of Gobbeh & Satta Kamara v. The Intestate Estate of J. Lamark Cox, Jr.*, Supreme Court Opinion, October Term, 2023.

This Court has consistently established that appeals before it may be dismissed on grounds of abandonment when there is showing that without any genuine justifiable reason, the records have not been transcribed to this Court after a protracted period. Any reasonable mind will agree that it would be unreasonable and unfair and a denial of justice against both parties to have an appeal lingering for years without a determination by this Court to either discharge the appellant from a complaint or to have the lower court judgment in favor of the appellee enforced. No litigant should be held hostage to an appellate process that has stalled, and the court should not permit its docket to become an instrument of uncertainty or undue delay as procedural rules implicitly by law require expedition as parties are expected to prosecute or defend appeals promptly and courts must ensure compliance to avoid prejudice and inefficiency

The respondent's argument that the records have already been transcribed to this Court does, in the instance case, considering the facts and circumstances and timelines involved in make a difference. The respondent filed a clerk's certificate issued by the Clerk of this Court to show that the records were transcribed to this Court, the records show that this certificate was issued on March 19, 2026, the same day this case was assigned for hearing, this show that the records were not transcribed to this Court since the respondent filed its notice of completion of appeal on July 12, 2022, it did not transcribe the records to this Court until March 19, 2026, which is a wait period of more than three (3) years. Respondent counsel has not given any genuine reason (s) or legally acceptable excuse whatsoever for such a prolonged delay, counsel for respondent has argued that he superintended his appeal as far

back as 2023, we have searched the records but find no evidence of any superintending done by the respondent; moreover, if the respondent claimed to have superintended the transcription of the records to this Court as far back as 2023, why it did not ensure that the records were transcribed in the same 2023, or in 2024 or 2025? This shows that the respondent's counsel was negligent and reckless in the handling of the appeal; however, respondent counsel, though reckless and negligent in handling his client's appeal, did make a last minute attempt to rectify and remedy the situation by ensuring the transcription of the records before the hearing of the motion. We deem this move and effort as genuine and a good faith attempt to correct the remedy.

This Court is not interested in dismissing cases solely on procedural grounds, especially where a good faith attempt was made to rectify the situation, as the essence of our procedural law is not to deny justice but to ensure the orderly execution of justice.

It is our considered opinion that this motion should be denied and this case heard on its merits; however, due to the callous attitude of respondent's counsel, he is hereby fined the amount of Five Hundred United States Dollars (US\$500.00) to be paid into Judiciary Account within Seventy-Two (72) hours or risks a more severe punishment. Respondent counsel is further warned that any such occurrence of this in the future would warrant stricter punishment.

WHEREFORE AND IN VIEW OF THE FOREGOING, the motion to dismiss is denied and the case ordered proceeded with on its merits. IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR SWALIHO A. SESAY APPEARED FOR THE MOVANT. COUNSELLOR LAVELA B. WALKER APPEARED FOR THE APPELLEE.

Denied.